Ref. Ares(2021)1841141 - 15/03/2021

DECISION authorising the use of unit costs for mobility in co-fund actions under the Research and Training Programme of the European Atomic Energy Community (2021-2025)

Having regard to the Treaty on the Functioning of the European Union,

Having regard to the Treaty establishing the European Atomic Energy Community,

Having regard to the Council Regulation establishing the Research and Training Programme of the European Atomic Energy Community for the period 2021-2025 complementing Horizon Europe – the Framework Programme for Research and Innovation, and in particular Articles 6 and 9 thereof,

Having regard to the Regulation of the European Parliament and of the Council establishing Horizon Europe – the Framework Programme for Research and Innovation, and in particular Article 21 thereof,

Having regard to Regulation (EU, Euratom) No 2018/1046 of the European Parliament and of the Council of 18 July 2018 on the financial rules applicable to the general budget of the Union[1], and in particular Articles 125 and 181 thereof,

Whereas:

(1) Simplification as a central aim of the Euratom Programme needs to be reflected in its design, rules, financial management and implementation,

(2) Programme co-fund actions under the Euratom Programme are designed to support research and training in both fission and fusion and require beneficiaries to travel to different places to achieve this,

(3) Simpler funding rules reduce the administrative costs for participation and contribute to the prevention and reduction of financial errors. In this respect, the use of unit costs is necessary to simplify the calculation of grant amounts, to significantly decrease the workload of both the beneficiaries and the granting authority as well as to accelerate payment procedures,

(4) The use of unit costs should therefore be authorised for costs of mobility of personnel in programme co-fund actions under the Euratom Programme.

THE FOLLOWING HAS BEEN DECIDED:

Sole Article

The use of eligible costs declared by recipients of Union funds on the basis of unit costs for the costs of mobility of personnel in programme co-fund actions is authorised under the Research and Training Programme of the European Atomic Energy Community (2021-2025), for the reasons and under the conditions set out in the Annex.

This Decision is subject to the final adoption by the legislative authority and entry into force without significant modifications of the Council Regulation establishing the Research and Training Programme of the European Atomic Energy Community for the period 2021-2025 complementing Horizon Europe – the Framework Programme for Research and Innovation,

[1] Regulation (EU, Euratom) 2018/1046 of the European Parliament and of the Council of 18 July 2018 on the financial rules applicable to the general budget of the Union, amending Regulations (EU) No 1296/2013, (EU) No 1301/2013, (EU) No 1303/2013, (EU) No 1304/2013, (EU) No 1309/2013, (EU) No 1316/2013, (EU) No 223/2014, (EU) No 283/2014, and Decision No 541/2014/EU and repealing Regulation (EU, Euratom) No 966/2012 (OJ L 193, 30.7.2018, p.1).

and of the Regulation of the European Parliament and of the Council establishing Horizon Europe – the Framework Programme for Research and Innovation.

Done at Brussels,

Jean-Eric PAQUET
Director-General of DG R&I

Annex

1. Form of Union contribution and categories of costs covered

Recipients of Union funds shall declare the costs of mobility of personnel on the basis of unit costs in programme co-fund actions under the Research and Training Programme of the European Atomic Energy Community (2021-2025).

Other eligible costs shall be reimbursed on the basis of eligible costs actually incurred.

The amounts of the unit costs to be declared by the beneficiaries shall be calculated in accordance with point 3.

2. Justification

2.1 Nature of the supported actions

Programme co-fund actions are designed to support research and training in both fission and fusion and require the staff of the beneficiaries to travel to different places to achieve this. These actions involve researchers from all Member States and Associated countries that will need to join their efforts and participate in joint experimental campaigns at different locations.

The complexity and specific nature of the Euratom programme and the programme co-fund actions justify the use of unit costs for declaring eligible costs under those categories that could otherwise lead to complicated calculations and might deter the beneficiaries from doing certain activities such as going on mobility. In the case of mobility costs, reimbursement using unit costs is appropriate because the costs can be estimated in advance and the mobility can be easily verified since it is an integral part of the action. The use of unit costs will increases predictability for the beneficiaries and consequently increases the attractiveness of the actions.

Furthermore, providing beneficiaries with the possibility to declare their costs in relation to the mobility of their personnel in these actions will continue the simplification introduced under the previous Euratom programmes.

2.2. Risks of irregularities and fraud and costs of control

The use of a unit cost to declare the costs of mobility of personnel in programme co-fund actions shall reduce the risk of errors because the beneficiary can declare eligible costs on the basis of an established amount based on existing unit costs and allowances used by the Commission instead of on actual costs.

The risk of irregularity or fraud while using the unit costs is reduced because the granting authority will not check the underlying costs associated with the mobility. Instead, it will verify only that the mobility took place (through checks, reviews or audits), as well as the correct application of the amount.

The system of unit costs for mobility of personnel was subject to several audits and evaluations in the Euratom Programmes 2014-2018 and 2019-2020. It was proven during the controls that the use of a simplified method of calculation of the allowances for people on mobility simplifies the payment of Union contribution to ensure easier checking and avoid double funding. Notwithstanding this, a higher risk of irregularity was found when using the

unit costs for short-term secondments. For this reason, the unit costs will only be used for long-term secondments, which are defined as secondments for periods of 3 months or longer.

2.3. Justification on why an output or result-based approach is not possible or appropriate

The use of unit costs for the costs of mobility of personnel cannot be related to a specific output or result, because the mobility makes up only a small part of larger actions that cannot be predefined, and it is therefore not possible or appropriate to base the use on these.

3. Method to determine and update the amount of the Union contribution in the form of unit costs

Under the Euratom Programmes 2014-2018 and 2019-2020, the model grant agreements allowed for declaration of the costs of mobility of personnel on the basis of a unit cost.

This system shall be maintained under the Research and Training Programme of the European Atomic Energy Community (2021-2025), but only for long-term secondments, defined as secondments for periods of 3 months or longer.

Programme co-fund actions supporting research and training in fission and fusion require researchers from all Members States and Associated countries to participate in joint actions as provided for in Annex I of the grant agreement at organisations in the Member States, Associated countries and in third countries.

It is important that the researchers that will collaborate in these actions are selected based on their qualifications and a simplified system for payment of their living costs during the period they are on mobility is in place, ensuring also their equal treatment as far of those costs of living are concerned.

In this respect, it is important to have a mobility scheme for the staff of the beneficiaries that need to be seconded to a location different from his/her place of employment, such as when:

- the researcher is seconded to an organisation different than her/his employer, for taking part in activities provided in Annex I of the grant agreement
- the researcher is seconded to another beneficiary for carrying out research activities provided in Annex I of the grant agreement;
- the personnel is seconded to support units that the consortium may create for assisting the programme manager in the implementation of the joint action.

As for the method of calculation of the unit costs for living allowances, it will be appropriate to use one similar to that applied for the secondment to the European Commission of seconded national experts[2], considering that, as in those cases, the staff of the beneficiary at another location is seconded in the interest of the service.

In addition to this living allowance, the seconded staff shall also be entitled to receive a monthly mobility allowance, a monthly family allowance and a monthly educational allowance. These three allowances do not apply for seconded national experts because the right of the seconded national experts to enrol their children in European schools and because seconded national experts usually get re-allocation expenses covered by their employer. Since these privileges could not be conferred on the seconded staff of the beneficiaries, it will be

[2] Commission Decision C(2008)6866 of 12.11.2008 laying down rules on the secondment to the Commission of national experts and national experts in professional training.

appropriate that a family allowance and an educational allowance cover the costs for the tuition fees for enrolling the children in European schools or other schools and a mobility allowance covers the re-allocation expenses of the seconded staff.

The costs of mobility of personnel shall be based on a unit cost per month consisting of the following categories:

(a) A **living allowance** corresponding to those allowances applicable to national experts and national experts in professional training provided in the Commission Decision C(2008)6866 of 12.11.2008 with subsequent adjustments. For ease of implementation, the amount for 2020 of EUR 4,300 per month shall be used for the formula below. The living allowance shall be reviewed and, where appropriate, adjusted each year.

(b) A **mobility allowance** to cover additional private costs, such as those for rent or relocation. The amount of the mobility allowance shall be corresponding to those mobility allowances applicable in Marie Skłodowska-Curie Actions amounting to EUR 600 per month. The use of the amount of mobility allowance from Marie Skłodowska-Curie Actions is considered the most appropriate given that it will cover private costs related to the researcher's mobility, such as travel and accommodation costs.

(c) A **family allowance** to cover the higher costs of the living abroad for the entire family for the seconded staff member who is accompanied during the secondment by family, including spouse or recognised partner and dependent children. The amount of the family allowance shall be corresponding to those family allowances applicable in Marie Skłodowska-Curie Actions amounting EUR 660 per month. The use of the amount of mobility allowance from Marie Skłodowska-Curie Actions is considered the most appropriate because it will reduce and overcome family-related obstacles to researcher mobility.

(d) An **education allowance** paid to the seconded staff member who is accompanied during the secondment by his or her dependent children. The children have to be at least five years old and in regular full-time attendance at a primary or secondary school that charges fees (registration and attendance fees) or at an establishment of higher education. The education allowance shall be granted automatically for children under eighteen and on application, with supporting evidence, by the seconded staff for children between eighteen and twenty-six who are receiving educational or vocational training. The amount shall be of EUR 283.82 per month for each dependent child. This amount is being used for the allowance paid to Euratom civil servants and other servants of Euratom according to the EU Staff Regulation. The use of the rates for education allowance paid to EU civil servants is considered the most appropriate because it will cover the actual education costs (enrolment and attendance fees in international schools) incurred by the seconded staff member.

To ensure purchasing power parity for seconded staff members working at different facilities in the Member States or third countries, the living allowance shall be subject to a country-specific correction coefficient pursuant to Article 64 of the Regulation No 31 (EEC), 11 (EAEC), laying down the Staff Regulations of Officials and the Conditions of Employment of Other Servants of the European Economic Community and the European Atomic Energy Community. The applicable coefficient is the one applicable at 1 January 2021. This country-coefficient shall be revised every year to make sure that seconded staff members' purchasing

power parity stays comparable irrespective of the country they are seconded. The revised amounts shall be applicable through an amendment to the grant agreement.

The mobility and family allowances will be updated automatically according to the Marie Skłodowska-Curie Actions allowances.

The new rates can be applied to ongoing and future actions once the Decision authorising increased rates for the Marie Skłodowska-Curie Actions allowances has been adopted.

The allowances shall be payable for periods of mission, annual leave, special leave, sick leave and holidays.

The costs of mobility of personnel shall be based on a unit cost per month and the value of the work of the seconded staff member shall be determined by multiplying the unit cost by the number of months actually seconded during the action to be calculated as follows:

{((Living allowance (EUR 4,300)

x

country-specific correction coefficient)

+

Mobility allowance (EUR 600)

+

Family allowance (EUR 660); if applicable

+

(Education allowance (EUR 283.82)

x number of dependent children; if applicable))

x

the actual number of months spent by the seconded staff member}

For partial months of secondment, a pro-rata unit cost of 1/30 shall be declared for each day (for ease of implementation, each month is considered to have 30 days).

The total number of months declared in EU grants, for a person for a year, cannot be higher than 12.

Since this cost already includes indirect costs, it shall not be taken into account for the indirect cost flat-rate.

4. Sound financial management and co-financing principles and absence of double financing

The methodology described in point 3 complies with the principles sound financial management, co-financing and absence of double funding as required by the Financial Regulation.

Sound financial management is respected because the costs of mobility of personnel are not expected to generate revenue or to be specifically funded by third donors. The unit cost should not exceed the actual eligible costs as they are calculated as a reliable proxy of the real costs, based on allowances used in other EU programmes and by the Commission in general.

In addition, the usual conditions for ensuring that the co-financing and absence of double funding principles are complied with also apply to the unit costs to be declared for the cost of mobility of personnel:

- The unit cost covers only part of the eligible costs;
- The reimbursement rates for programme co-fund actions mentioned in Article 30 of the Regulation establishing Horizon Europe applying also to Euratom actions shall apply to the unit costs during payment stage;
- Double funding is avoided by the specification/identification of the eligible costs.

Electronically signed on 12/03/2021 16:29 (UTC+01) in accordance with article 11 of Commission Decision C(2020) 4482